

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made
under Section 331 of the Code of
Criminal Procedure Act No.15 of
1979.

**Court of Appeal Case No.
CA/HCC/0099/2024
High Court of Nuwara Eliya
Case No. HC/37/2014**

Rajarithnam Jegatheeswaran

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **Thanuka Nandasiri for the Appellant.
Azard Navavi, PC, ASG for the Respondent.**

ARGUED ON : **03/08/2026**

DECIDED ON : **07/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General for committing one count of grave sexual abuse punishable under Section 365B (2) (b) of the Penal Code on Kanagaratnam Thanusiya between the period of 01.01.2010 and 31.01.2010.

The trial commenced on 11/01/2018. After leading all the necessary witnesses, the prosecution had closed the case. The Learned High Court Judge had called for the defence and the Appellant opted to give evidence from the witness box and called another witness on his behalf.

The Learned High Court Judge after considering the evidence presented by both parties, convicted the Appellant as charged and sentenced him to 12 years rigorous imprisonment and a fine of Rs.5,000/- was imposed, subject to a default sentence of 03 months imprisonment. In addition, a compensation of Rs.500,0000/- was ordered with a default sentence of 02-year imprisonment.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. At the time of the argument, he was connected via the Zoom platform from prison.

Before the commencement of the argument, as a preliminary issue, the Learned Counsel for the Appellant informed this court that the evidence given by the victim did not disclose the act which could be brought within Section 365B (2) (b) of the Penal Code.

The Victim, PW1 in her evidence stated that in the given time period, the Appellant being a school teacher, had embraced her twice and kissed her. The victim had not disclosed any other act performed on her during that time. As per the amended indictment, the Appellant was charged only for touching the chest area of the victim. However, the victim when giving evidence, reiterated that the Appellant only embraced and kissed her on both occasions. Further, it was recorded in the history taken by the JMO that the Appellant had put his finger inside her genital area, and that he had inserted his genitals inside hers. However, such an act of penetration had not been mentioned by PW1 when giving evidence.

According to the prosecution, the victim was 10 years old when she encountered this unfortunate incident. When giving evidence, she was 17 years old and a more matured child.

The Appellant had given evidence from the witness box and denied the charge.

The Learned Additional Solicitor General, in keeping with the highest traditions of the Attorney General's Department, conceded that the act said to have committed on the victim by the Appellant does not fall under the preview of grave sexual abuse. It was also agreed that the prosecution had not elicited the particular act mentioned in the amended indictment from the victim.

In criminal trials, the charge would serve as the most basic foundation. The charge would inform the accused regarding the nature of the allegation levelled against him. Thus, the charge must accurately identify the act committed by the accused as well as the law alleged to have been violated by him. Moreover, the relevant details regarding the alleged offence must be clearly mentioned in the charge.

In **Hattuwan Pedige Sugath Karunaratne v Hon.Attorney General** SC Appeal 32 of 2020 dated 20.10.2020 his Lordship Aluvihare, J. held that:

“..... No doubt the duty of a State Counsel is to present the prosecution in an effective manner to the best of their ability in furtherance of securing a conviction, if the evidence can support the charge. The Prosecutor, however, is an officer of the court and their role is to assist the court to dispense justice. Thus, it is not for a Prosecutor to ensure a conviction at any cost but to see that the truth elicited, and justice is meted out”.

The Supreme Court in **The Queen v Liyanage and Others** (1963) 65 NLR 337, stated that:

“... on a trial upon Indictment, by the very essence of the pre-trial procedure, an accused person becomes aware of all the evidence relied upon by the Crown in support of the Indictment and which the Crown intends to place against him at the trial. He is entitled in law to know such evidence before he is called upon to plead to the Indictment. It is a right of his, inherent in that procedure.”

In the case of **Rowe and Davis v the United Kingdom** [2000] ECHR, The European Court of Human Rights held:

“... in a criminal case, that both prosecution and defence must be given the opportunity to have knowledge of and comment on the observations filed and the evidence adduced by the other party.”

In the case of **Edwards and Lewis v. United Kingdom** (2004) 40 EHRR 593 it was held that:

“It is in any event a fundamental aspect of the right to a fair trial that criminal proceedings, including the elements of such proceedings which relate to procedure, should be adversarial and that there should be equality of arms between the prosecution and defence. The right to an adversarial trial means, in a criminal case, that both prosecution and defence must be given the opportunity to have knowledge of and comment on the observations filed and the evidence adduced by the other party (ibid., § 51). In addition, Article 6 § 1 requires that the prosecution authorities should disclose to the defence all material evidence in their possession for or against the accused (ibid.).”

Section 365 B (1) states:

Grave Sexual Abuse is committed by any person who, for sexual gratification does any act by the use of his genitals or any other part of the human body or any instrument on any orifice or part of the body of any other person being an act which does not amount to rape under section 363...

In **Mahalakotuwa v. The Attorney General** [2011] 2 B.L.R 406 D.S.C Lecamwasam,J. held that:

“On a plain reading of the above section it is clear, that the section envisaged a grave situation which falls short of rape. It cannot be a mere ‘Touch’. It has to be much more serious than a touch and to come within the ambit of ‘Grave Sexual Abuse’ it must be of a very high degree, so serious and grave in nature that it can only fall short of Rape, but must surpass situations expected in section 345,365 and 365A”.

Further, in the case of **Yoga v. Attorney-General** [2010] 2 Sri L.R. 162 it was held that:

“To establish a charge under section 365 (B) of the Penal Code the prosecution must establish that the alleged act was done with the intention of having sexual gratification. This aspect must be proved beyond reasonable doubt.”

In the case of **Jayathilaka v. Attorney-General** [2008] 2 Sri L.R. 117, rape and grave sexual abuse was distinguished as follows:

“In a charge of rape, the prosecution must prove penetration, in a charge of grave sexual abuse prosecution is not required to prove penetration. The ingredients in a charge of rape are different from the ingredients that must be proved in a charge of grave sexual abuse.”

In the body of the charge, it is alleged that in order to obtain sexual gratification, the Appellant had touched the chest area of the victim. However, when the victim gave evidence, she quite notably restricted her evidence to claim that the Appellant had only embraced and kissed her. According to the plain reading of Section 365 B (1) of the Penal Code, I conclude that the act which was said to have been committed on the victim does not constitute an offence under 365 B (1) of the Penal Code in this case. Hence, it is necessary to consider what the appropriate section under the Penal Code should have been considered in this case.

Section 345 of Penal Code as amended states:

“Whoever, by assault or use of criminal force, sexually harasses another person, or by the use of words or actions, causes sexual annoyance or harassment to such other person commits the offence of sexual harassment and shall on conviction be punished with imprisonment of either description for a term which may extend to five years or with fine or with both and may also be ordered to pay compensation of an amount

determined by court to the person in respect of whom the offence was committed for the injuries caused to such person.”

EXPLANATION

1. Unwelcome sexual advances by words or action used by a person in authority, to a working place or any other place, shall constitute the offence of sexual harassment.

2. For the purposes of this section an assault may include any act that does not amount to rape under section 363 or grave sexual abuse under section 365B.

3. "injuries" includes psychological or mental trauma.

According to the facts of this case, taking the victim under his authority, the Appellant had intentionally used force on the victim by embracing and kissing her, and thereby had caused sexual harassment, therefore committing an offence under section 345 of the Penal Code and not under section 365 B (1) of the Penal Code as amended.

In **Mahalakotuwa v. The Attorney General** (Supra) the court further held that:

“Assuming but without conceding, that the act committed by the appellant falls within both sections 345 and 365B or alternatively if it is uncertain as to which precise section of the two it falls under, then he should be convicted under section 345 and not 365B. According to Maxwell on Interpretation of Statutes 12th edition page 239 Lord Esher M.R. had held in Tuck and Sons v. Priestner (1887 (19) QBD 629 at 638)if there are two reasonable constructions, we must give the more lenient one”

In the case of **Sebastian Fernando v Katana Multi -Purpose Co-operative Society Ltd and Others** (1990) 1 SLR 342 it was held that:

“Statutes which encroach upon the rights of the citizen have to be “strictly” construed: they should be interpreted, if possible, to respect such rights, and if there is any ambiguity, the construction which is in favour of the freedom of the individual should be adopted. Statutes which impose pecuniary burdens or penalties are subject to the same rule. If there are two reasonable constructions, one of which will avoid the penalty, that construction must be preferred.”

In the case of **Wickramasinghe v Attorney General and Another** (2010) 1 SLR 141 it was held that:

“Assuming that there are two different interpretations of the words in the Bail Act, is it reasonable, sensible or justifiable to keep a suspect or accused on remand indefinitely without being prosecuted? I think not. For these reasons I think that courts will have to interpret the law giving a meaningful interpretation to the intention of the legislature.”

In this case, the Learned High Court Judge who delivered the judgment had not evaluated the ingredients of Sections 365B and 345 of the Penal Code as amended to consider what the appropriate charge is, to be framed against the Appellant. Had this been correctly analysed and considered at that time, the court could have sentenced the Appellant under Section 345 of the Penal Code.

In **Mahalakotuwa v. The Attorney General** (Supra) the court further held that:

“In a case of this nature when the facts clearly show that the accused cannot brought under 365B (2) b, learned judges should not hesitate to use their prudence in deciding whether a particular set of facts constitute the offence contained in the indictment or not. If not, without mechanically passing the sentence on the indictment already filed they must have the

audacity to act under 177 or 178 of the CPC and convict the accused accordingly for a different offence.”

As discussed above, the evidence adduced by the prosecution does not support the conviction delivered by the Learned High Court Judge of Nuwara Eliya dated 05/03/2024. Hence, I set aside the said conviction and sentence and substitute it with a conviction under Section 345 of the Penal Code as amended and impose two years rigorous imprisonment and a fine of Rs.5,000/- with a default sentence of 03 months simple imprisonment. Further, the Appellant is ordered to pay a sum of Rs.150,000/- to PW1 as compensation and in default serve 01-year simple imprisonment. Considering all the circumstances of this case, I order the sentence to take effect from the date of conviction i.e., from 05/03/2024. Subject to the above variations, the appeal is dismissed.

The Registrar is directed to send this judgment to the High Court of Nuwara Eliya along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL